

23VECV01940 23VECV01940

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Division: Civil Law and Motion
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Case Number: 23VECV01940 Hearing Date: August 12, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

PERRIN DAVIDSON, an individual; SARAH NAZARI, an individual,

Plaintiff,

vs.

LORDON
ENTERPRISES INC., a California Corporation; DONALEA BAUER, an individual;
SHELBY WAGNER, an individual; CONEJO VALLEY CONSTRUCTION, INC.; FORREST
GREGGE; and DOES 3 through 25, inclusive,

Defendants.

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CASE NO.: 23VECV01940

ORDER

DENYING PLAINTIFFS' MOTION TO VACATE THE JULY 6, 2026, ORDER GRANTING MOTION
FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR RECONSIDERATION

1.

BACKGROUND

This action is brought by Plaintiffs Perrin Davidson ("Davidson") and Sarah Nazari ("Nazari") (collectively, "Plaintiffs") against the property management company responsible for managing their community where they own a townhome, Defendant Lordon Enterprises Inc. ("Lordon"), and the manager and assistant manager of that company, Defendant Donalea Bauer ("Bauer") and Defendant Shelby Wagner ("Wagner") (collectively "Lordon Defendants"), respectively.

On May 9, 2024, Plaintiffs amended their Complaint to add Defendants Conejo Valley Construction Inc. ("Conejo Construction") and Forrest Gregge ("Gregge"), adding both in place of "Doe 1."

On November 21, 2025, consistent with its order granting Gregge's and Conejo Construction's Motion for Summary Judgment, the Court entered judgment in favor of those two defendants.

Plaintiffs move to vacate the July 6, 2026, Order granting Defendants Lordon, Wagner, and Bauer's (jointly, "Defendants") Motion for Summary Judgment pursuant to Code of Civil Procedure § 473(b). Alternatively, Plaintiffs move for reconsideration of the July 6, 2026, Order to reflect the December 2025 tentative ruling, pursuant to Code of Civil Procedure § 1008.

II. PROCEDURAL HISTORY

On May 4, 2023, Plaintiffs filed their Complaint, alleging (1) Fraud [Intentional Misrepresentation]; (2) Negligence; (3) Intentional Infliction of Emotional Distress; (4) Breach of Fiduciary Duty; and (5) Violation of B&P §17200 Unfair Business Practices against all defendants.

On July 21, 2023, Lordon Defendants filed their Answer.

On May 9,

2024, Plaintiffs amended their Complaint to add Gregge and Conejo Construction, adding both in place of "Doe 1." [1]

On July 5,
2024, Gregge and Conejo Construction filed their Answer.

On November
5, 2025, the Court granted Gregge's and Conejo Construction's Motion for Summary Judgment.

On November
21, 2025, the Court entered judgment in favor of Conejo Construction and Gregge.

On November
25, 2025, Lordon filed a Notice of Stay of Proceedings (Bankruptcy).

On December
9, 2025, the Court denied Plaintiff's Motion for Leave to Amend.

On December 24, 2025,
Conejo Construction and Gregge filed a Notice of Entry of Judgment.

On December 30, 2025, the
Lordon Defendants filed a Notice of Stay of Proceedings.

On February
26, 2026, the Court denied Plaintiff's Motion to Vacate Summary Judgment as to Conejo Construction and Gregge.

On July 6,
2026, the Court granted the Lordon Defendant's Motion for Summary Judgment.

On July 16,
2026, Plaintiffs filed the instant Motion.

On July 22,
2026, Plaintiffs filed an Amended Motion.

On July 30,
2026, the Lordon Defendants filed an Opposition.

On August 4,
2026, the Court continued this hearing at Plaintiffs' counsel's request to allow
for him to file a Reply.

On August 5,
2025, Plaintiffs filed a Reply.

III.

LEGAL STANDARD

Code of Civil

Procedure § 473(b)[2] states: “The
court may, upon any terms as may be just, relieve a party or his or her legal
representative from a judgment, dismissal, order, or other proceeding taken
against him or her through his or her mistake, inadvertence, surprise, or excusable
neglect. Application for this relief shall be accompanied by a copy of the
answer or other pleading proposed to be filed therein, otherwise the
application shall not be granted, and shall be made within a reasonable time,
in no case exceeding six months, after the judgment, dismissal, order, or
proceeding was taken.”

Code of Civil

Procedure § 1008 is the exclusive
means for seeking reconsideration of an order or renewing a motion. (See *Kerns v. CSE Ins. Group*, 106
Cal.App.4th 368, 384.) Under that statute, seeking reconsideration of an
order or filing a renewed motion are governed by the same essential
requirements, with the exception that a renewal motion has no time limitations. (See Code Civ. Proc. § 1008(b); See
also *Kerns*, 106 Cal.App.4th at 381.) The requirements demand that an application be made
upon new or different facts, circumstances or law, and that it give a satisfactory explanation
for the previous failure to
present the allegedly new or different evidence or legal authority offered in the second application. (See *Kerns*, 106
Cal.App.4th at
383.)

The

application to reconsider the matter and modify, amend, or revoke the
prior order must be made within 10
days after service upon the party of written notice of entry of the order to the same judge or
court that made the order. (See Code

Civ. Proc. § 1008(a).) Such a motion for reconsideration may only be brought if the party moving for reconsideration can offer “new or different facts, circumstances, or law” which it could not, with reasonable diligence, have discovered and produced at the time of the prior motion. (See Code Civ. Proc. § 1008(a).)

IV.

JUDICIAL NOTICE

The Court

grants Defendants' request for judicial notice of documents in this docket. (See Evid. Code, § 452(d).)

V.

ANALYSIS

Plaintiffs

move to vacate the July 6, 2026, Order granting Defendants' Motion for Summary Judgment. Alternatively, Plaintiffs move for reconsideration of it to reflect the Court's initial December 2025 tentative ruling, which was issued before the Court had clarity about the bankruptcy stay, pursuant to Code of Civil Procedure § 1008. Plaintiffs move for relief pursuant to §§ 473 and 1008 based on the same grounds.

Plaintiffs argue

their failure to appear at the June 12, 2026, hearing was due to mistake, surprise, or inadvertence. Plaintiffs contend Defendants' counsel failed to provide notice of the June 12, 2026, hearing and noticed an ex parte hearing in another matter for June 12, 2026, causing Plaintiffs' counsel to attend that hearing that morning. (See Mot. at 6:8-14, 8:1-6; Declaration of Perrin Davidson filed July 22, 2026 (“Davidson Decl.”), ¶¶ 4-5.) Plaintiffs request the Court vacate the July 6, 2026, Order and enter the December 30, 2025, tentative as the ruling or set the matter for hearing to allow Plaintiffs an opportunity to respond to Defendants' oral arguments made at the June 12, 2026, hearing. (See Mot. at 8:6-10; Davidson Decl., ¶ 6.) Plaintiffs contend they did not anticipate the Court would change the December 30, 2025, tentative and rule in favor of Defendants. (See Mot. at 4:1-2.)

In

opposition, Defendants argue Plaintiffs are not entitled to discretionary

relief under § 473(b) because they missed several noticed court appearances and court requirements, and thus were not diligent. (See Opp. at 4:18-20, 5:8-10.) Defendants also cite *The Urb. Wildlands Grp., Inc. v. City of Los Angeles* (2017) 10 Cal.App.5th 993, for the proposition that mandatory relief under § 473(b) is not available for summary judgment orders. (See id., at 5:4-8.) Defendants argue Plaintiffs are not entitled to relief under § 1008 because they fail to identify or establish any new facts or circumstances warranting relief. (See id., at 6:1-3.) Defendants contend Plaintiffs had notice of all hearings related to the MSJ hearing and there is no good cause to vacate the order. (See id., at 4:6-7:1.)

In reply,

Plaintiffs set forth the following facts, arguing the July 7, 2026, Order should be vacated: the Dec. 30, 2025 prior ruling was captioned as an 'Order,' and not a tentative decision although it was not signed; no new evidence was presented justifying the Court to change its ruling; Plaintiffs had no notice of the June 12 hearing; the record fails to show what substantive evidence, if any, was presented during oral argument by Defendants' counsel; and the wrongful conduct by opposing counsel in forcing Plaintiffs to appear at another hearing at the same time as the MSJ hearing in this action. (See Reply at 1-3.)

As an initial matter, Plaintiffs are not entitled to relief under Code of Civil Procedure § 1008 as Plaintiffs do not seek reconsideration on new facts, circumstances, or law. (See Code Civ. Proc. § 1008(a).) The Court turns to whether Plaintiffs are entitled to relief under § 473(b).

Plaintiffs

are not entitled to mandatory relief under Code of Civil Procedure § 473(b) either. An attorney affidavit of fault does not warrant relief from judgments or orders based on a determination of the merits. (See *English v. IKON Business Solutions, Inc.* (2001) 94 CA4th 130, 137-138 [summary judgment not a "default," "default judgment" or "dismissal" within meaning of CCP § 473(b)].)

The Court finds Plaintiffs are not entitled to discretionary relief under Code of Civil Procedure § 473(b) as there is no showing of mistake, inadvertence, or excusable neglect. Here, Defendants were ordered to give notice for the hearing on the Motion for Summary Judgment

scheduled for June 12, 2026. (See May 26, 2026, Minute Order.) Defendants filed a Notice of Ruling on May 27, 2026, providing notice of the Status Conference re: Bankruptcy and the June 12, 2026, hearing; Defendants served this notice on Plaintiffs. (See Notice of Ruling filed May 27, 2026.) Defendants also served Plaintiffs with notice of the Court taking Defendants' Motion for Summary Judgment under submission. (See Notice of Ruling filed June 16, 2026.) The docket shows Plaintiffs had notice of the June 12, 2026, hearing. Despite having notice of the June 12th hearing, Plaintiffs' counsel did not inform the Court he had a conflicting hearing on the same date and time in another action or request he be given time to attend the ex parte in the other action and then the hearing on the pending motion for summary judgment in this action. Plaintiff's counsel also did not inform the Court why he missed the June 12, 2026, hearing despite having received notice on June 16, 2026, of the Court taking the motion for summary judgment under submission. Thus, the Court does not find Plaintiffs' counsel's failure to appear at the June 12, 2026, hearing was due to mistake, inadvertence, or excusable neglect.

Further, the Court's changing its December 30, 2025, tentative ruling was based on the evidence submitted with the motion for summary judgment papers. A tentative ruling is not final or binding. And after taking the motion for summary judgment under submission and further considering the evidence before it, the Court ultimately found Defendants did meet their burden and updated its final ruling to reflect those findings.

Based on the foregoing, the Court DENIES Plaintiffs' Motion to Vacate the July 6, 2026, Order, or alternatively, Reconsideration of the July 6, 2026, Order.

VI.

CONCLUSION

Based on the foregoing, the Court DENIES Plaintiffs' Motion to Vacate the July 6, 2026, Order, or alternatively, Reconsideration of the July 6, 2026, Order.

IT

IS SO ORDERED.

DATED: August 12, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] Plaintiffs should have
named one as Doe 1 and the other as Doe 2.

[2] All statutory references
are to California codes unless stated otherwise.